

supra, at 500.² Neither “palpable injury” nor “causation” is a term of unvarying meaning. There is much in the way of “mutual understandings” and “common-law traditions” that necessarily guides the definitional inquiry.³ *In addition*, the Constitution, and by legislation the Congress, may impart a new, and on occasion unique, meaning to the terms “injury” and “causation” in particular statutory or constitutional contexts. The Court makes a fundamental mistake when it determines that a plaintiff has failed to satisfy the two-pronged “injury-in-fact” test, or indeed any other test of “standing,” without first determining whether the Constitution or a statute defines injury, and creates a cause of action for redress of that injury, in precisely the circumstance presented to the Court.

It may of course happen that a person believing himself injured in some obscure manner by government action will be held to have no legal right under the constitutional or statutory provision upon which he relies, and will not be permitted to complain of the invasion of another person’s “rights.”⁴ It

²“Congress may enact statutes creating legal rights, the invasion of which creates standing, even though no injury would exist without the statute.” *Linda R. S. v. Richard D.*, 410 U. S. 614, 617, n. 3 (1973). The Framers of the Constitution, of course could, and did, exercise the same power.

³Justice Frankfurter identified two sources to assist in the definitional inquiry concerning injury:

“A litigant ordinarily has standing to challenge a governmental action of a sort that, if taken by a private person, would create a right of action cognizable by the courts. Or standing may be based on an interest created by the Constitution or a statute.” *Joint Anti-Fascist Refugee Committee v. McGrath*, 341 U. S. 123, 152 (1951) (concurring opinion) (citations omitted). In identifying the types of injuries that might be recognized in private law actions as a basis for suits against the Government, Justice Frankfurter felt free to draw on principles of “common law.” *Id.*, at 152–153, 157–160.

⁴Of course, we generally permit persons to press federal suits even when the injury complained of is not obviously within the realm of injuries that a particular statutory or constitutional provision was designed to guard